

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

MARC M. MOSZKOWSKI,

Appellant,

CASE NO.: 1D2025-2912

vs.

**DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,**

Appellees.

**APPELLANT'S MOTION FOR LEAVE TO FILE A LIMITED REPLY TO
APPELLEES' RESPONSE TO MOTION FOR REHEARING**

Appellant Marc M. Moszkowski, appearing pro se, respectfully moves for leave to file a limited reply to Appellees' Response dated October 8, 2026, and states:

1. Appellees' Response dated October 8, 2026, presents Appellant's nonparticipation in mediation and subsequent proceedings as noncompliance with court orders, while omitting material circumstances repeatedly documented before the trial court.
2. Appellant's inability to travel from France to Florida resulted from severe financial hardship, including bank-account seizures pursued

by David Rumsey, and serious medical impediments to international travel. Appellant repeatedly requested remote participation and invoked Article XI of DeepGulf's Bylaws concerning advancement of qualifying litigation expenses.

3. Following the pretrial and trial of June 10 and 17, 2025, Appellant contacted the Court Reporter's Office and was informed that no transcript of the proceedings, including Rustin Howard's testimony, had been prepared or was available. Appellant also corresponded with the Clerk's Office concerning access to the record. Despite those efforts, Appellees subsequently invoked the absence of a transcript as an impediment to appellate review. Appellant, proceeding pro se, had understood that an official record of the proceedings would be preserved, as had been the practice in the earlier federal proceedings. In any event, his documented financial circumstances would have made it impossible for him to retain a court reporter at his own expense. Appellant further maintains that the cost of preserving an official record of proceedings brought against him in his capacity as a director and officer of DeepGulf fell within the litigation expenses for which he had invoked advancement or reimbursement under Article XI of DeepGulf's Bylaws. Having been unable to attend the trial in

person, and having been denied permission to participate remotely, Appellant was consequently deprived of any practical opportunity to observe or preserve a record of the proceedings. Appellees now rely on the resulting absence of a transcript to oppose review of the judgment. Appellant respectfully submits that this circumstance cannot fairly be considered in isolation from the documented impediments to his participation.

4. Mediation presented a separate financial obstacle, notwithstanding that participation by Zoom was authorized. Between March 26 and May 27, 2025, Appellant filed no fewer than thirteen documents referring to mediation in their titles. The question of mediation fees was expressly presented at the April 3, 2025 hearing, including through Appellant's *Motion to Enforce By-Laws and for Relief from Mediation Costs, and Response to Plaintiff's Motion to Require Defendant to Pay Mediation Fees*.
5. The trial court's April 17, 2025 *Order to Appear for Mediation or Order to Show Cause* expressly recorded, in paragraph 6, that Appellant's objection was financial and, in paragraph 7, Appellant's reminder that he had not yet failed to comply with the mediation deadline. Nevertheless, the Court ordered Appellant to tender a \$900 deposit

for remote mediation on May 21, 2025, notwithstanding his monthly income of less than \$1,000 and the seizure of his bank accounts. The order further required an in-person show-cause appearance in Pensacola on June 10 in the event of noncompliance, warning that sanctions could include striking Appellant's pleadings or entering a default.

6. These circumstances were raised before the trial court, not asserted for the first time following judgment. Appellant disputes the characterization of his nonparticipation as willful disregard of judicial authority and seeks leave solely to correct the procedural account presented by Appellees, without introducing new issues, supplementing the evidentiary record, or rearguing the merits of his Motion for Rehearing.
7. A limited reply identifying these matters by reference to the existing trial court record would assist the Court in evaluating Appellees' procedural assertions without prejudice to either party.

WHEREFORE, Appellant respectfully requests leave to file a limited reply confined to correcting the material omissions and procedural assertions identified herein, or such other relief as the Court considers appropriate.

Respectfully submitted this 9th day of October, 2026.

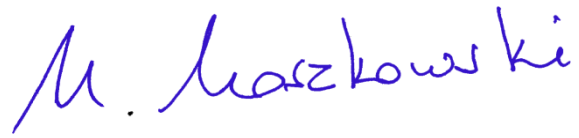
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CERTIFICATE OF SERVICE

I hereby certify that, on this 9th day of October 2026, a true and correct copy of the foregoing was served on all counsel of record via the Florida Courts E-Filing Portal.

